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THE DILEMMAS OF CONFLICT RESOLUTION: A COMPARISON OF SRI LANKA AND CYPRUS

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This article examines the theoretical claims made about the role of conflict resolution, especially workshop, facilitation, and project oriented approaches in the context of the cases of Sri Lanka and Cyprus. It argues that conflict resolution approaches, while proving to have made significant contributions to the emergence of a viable peace process on both islands, continue to present some major dilemmas that have yet to be addressed in either context.

The application of conflict resolution oriented approaches to ethnic conflict have increasingly become part of the liberal toolbox of the international community, partly because they allow individuals to play a role in creating a peace process, and also because conflict resolution professes a belief in a peace based upon popular consensus and justice. This involves various attempts to create grass-roots mechanisms and processes in which conflicts can be addressed.¹ More specifically, non-governmental organizations (NGOs) are formed and funded as vehicles for conflict resolution workshops and professional training projects that attempt to build peace by addressing a conflict directly or indirectly through third party facilitation. Furthermore, the use of facilitators rather than direct mediators who focus on the development of unofficial or semi-official “back-door” contacts are derived from this approach. A common assumption of conflict resolution is that such processes are able to facilitate peacebuilding and the development of high-level compromises by contributing at a semi-official and unofficial level. Failing this, they may help prepare societies for a liberal peace. However, the so-called “trickle up” effect on which this assumption based is difficult to assess,² despite the fact that

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conflict resolution approaches have become an important part of national, private, and organizational responses in responding to, and managing, intractable forms of conflict.

This article examines the patchy theoretical claims made about the role of conflict resolution, especially workshop, facilitation, and project oriented approaches in the context of basic assumptions about the process and its aims in the context of the cases of Sri Lanka and Cyprus. Debates about the value and effectiveness of conflict resolution approaches shift between those who implicitly assume that they play an important role in freeing up high level debates through a trickle-up effect or as a complimentary approach, and those who see them as tools of “soft” intervention aimed at importing external cultural and political norms. This is rarely explicitly acknowledged in the literature, however. There is little doubt that conflict resolution has become a significant industry, as well as an approach often appropriated by indigenous actors without resources but who desire to find a way out of the conflict they are affected by, and on this basis find themselves able to secure training, participation, and funding via CR. It is also often appropriated by official actors who desire to find a way to intervene in civil society issues. These approaches do offer a method of intervention in civil society by external actors, but this can then be susceptible to claims of intervention, social engineering, and partiality. If conflict resolution debates are seen as culturally insensitive³ why then have they become so popular within liberal socio-political groupings and so controversial within more conservative groups? In an inherently conservative international order, can approaches to ending conflict, including conflict resolution, achieve little more than a contribution to the replication of that order, either by being effective in importing external values or by not being effective and allowing a *de facto* situation to continue? These important dilemmas in the use and development of conflict resolution have so far received little attention.

The key dilemma appears to be that while such approaches aim at a positive peace, their application may result in something less. In order to examine these this article looks at some of the key problems associated with the recent conflict resolution literatures. Then it turns to a comparison of the dynamics of the conflict in Sri Lanka and Cyprus before presenting an analysis of the use of conflict resolution on both islands, and the problems associated

with this use. Finally, it attempts to make some sense out of the wide-ranging claims and criticisms that exponents and opponents of conflict resolution make. It concludes that conflict resolution approaches, while proving since the recent hopeful developments on both islands to have made significant contributions to the emergence of a viable peace process, continue to present some major dilemmas that have yet to be addressed.

Conflict Resolution in Theory: Some Problems

A series of important problems can be identified in recent debates about conflict resolution. First, at the provenance level, epistemological and ontological debates rear their heads as one tries to answer the question of what conflict resolution theory is for, and why? Most analysts tend to assume that its role is to facilitate a broader peace than traditional approaches give rise to, and to accept the assumption that there is a general impulse to help the other who is caught up in conflict. The basic premise of conflict resolution revolves around civil society oriented activities that deconstruct the oppositional social and psychological constructs that perpetuate conflicts within a human needs framework.⁴ The key methods, those of problem-solving workshops, third party facilitation, and increasingly, project oriented approaches, are aimed at protracted conflicts, and involve private individuals and sometimes officials. These individuals would then contribute to a reduction of oppositional constructs by acting upon their new-found understandings of what causes their conflict in their social and professional roles. Yet, it has been argued that conventional conflict resolution methods,⁵ such as problem solving facilitation and project-oriented approaches, are only partially effective.

There are five prime reasons for these shortcomings according to Schehr and Milovanovic: the privileging of order, the celebration of the ideal speech situation and consensus dynamics, the continuous encroachment of legal discourse at the expense of alternative discourses, and, finally, the lack of connected strategies between the macro and micro domains.⁶ While this contemporary critique of conflict resolution seems to be self-evident, the growth of the area has been marked by a limited engagement with such critiques, and its institutionalization in practice has been noticeably devoid of much reflection about

its potential side effects beyond the standard facilitation and problem-solving paradigm it engenders. Where such reflection has crept in it has been mainly to provide effectiveness surveys in a management style and focus on efficiency.⁷ Thus, the hierarchies of traditional diplomacy tend to be replicated by conflict resolution approaches, particularly as its genesis lies in civil society activism from which there is little short-term ability to influence “foreign” policy during crisis periods when state or group security issues are privileged.

The practice of conflict resolution seems to indicate some difficult dilemmas that have not yet been thought through, with regard to both its provenance and its processes. At the process level these include the privileging of high-level actors, state frameworks, and order over justice, while at the same time the social aspects of the process indicate the legitimacy of human rights, self-determination, and justice over state centrality and international order. Official actors are placed on a par with the non-official and vice versa. Around this difficult balancing act there is little discussion of power and influence in the conflict resolution literature, mainly because this is seen to be privileging officialdom, and “peace” is understood as a natural, socio-biological state. Yet, even despite this absence, clearly officialdom retains its privileges in conflict environments and often this creates obstacles for the process of conflict resolution, or alternatively turns the process into a “top down” effort to socially engineer conditions of “peace” in the conflict environment by policy makers and organizers.

A further key critique of such approaches emerged in the work of Kevin Avruch. He has argued that CR approaches downplay, misunderstand, or completely ignore the role of culture.⁸ CR approaches need to develop a much more critical awareness of its role in conflict and in dealing with conflict particularly given the predominance of Western trained actors using such techniques in non-Western environments. Burtonian human needs approaches in particular present needs as generic and therefore impervious to cultural considerations.⁹ On the other hand, the work of John Paul Lederach has moved some way to recognizing the crucial role of culture, as both an obstacle to mainstream approaches and a possible resource for facilitators.¹⁰ Thus, Avruch argues that “in intercultural conflict resolution a cultural analysis is an irreducible part of problem solving.”¹¹ This recognizes that culture

is a fluid, ever-changing identity claim, discourse, and act, and that contestation and or culture-blindness are as much a part of conflict as territory, resources, or other more generally accepted conflict issues. Such concerns have been heavily reflected in other contributions to the literature on conflict resolution (notably in Vayrynen's critique of Burtonian human needs approaches also for their cultural neglect). Cohen has also pointed out the limits of certain types of discourse (focusing on language rather than culture) in such processes and argues that variations in language use can reflect differing assumptions about the causes and nature of conflict, as well as on the nature of peace.¹² Aggestam has pointed to the need for a "third culture of negotiation" in which there exists "relational empathy" and an opportunity for the "reconstruction of meaning" from which diversity and "the 'other's' narrative" can be accepted.¹³

Another significant difficulty lies in the assumed relationship between traditional high-level approaches to ending conflict and conflict resolution approaches. Unofficial or Track II methods that precede the more traditional diplomatic approaches may prepare the ground for official negotiations. Negotiations initiated at the Track II level or channel may then be passed to an official negotiating forum. The argument that Track I and II are complementary has been based upon the assumption that the lines between official and unofficial mediation processes have become increasingly blurred and that conflict resolution methodologies can be applied to official processes.¹⁴ This assumes that official process have not taken over and colonized the unofficial level, however.

It may also be that the assumption that conflict resolution approaches reduce ethno-nationalism and stereotyping, and that blurring the lines between unofficial and official diplomacy will not merely reproduce hegemonic discourses, is also incorrect. The elevation of human security issues through conflict resolution approaches may exacerbate polarization in civil society because its dominant groups may still focus on state security. This implies that the ontology, epistemology, and methodology of conflict resolution and management approaches are juxtaposed, and that contingency approaches, parallel track processes, and wider conflict transformation approaches result in the replication of zero-sum discourses revolving around state security. It could well be that the linkages between CM and CR merely mean that conflict

resolution approaches become beholden to state interests, with all of their inherent legal and structural asymmetries. This is an important dilemma. Should conflict resolution approaches be funded and used in conflict zones if they no longer clearly aim at the creation of a just peace in the context of the criticism laid out above, but instead focus more on the support of a high level peace process aimed at the consolidation of a post-conflict status quo rather than a viable and just peace? These problems are examined further in the following sections analyzing two key case studies.

A Tale of Two Protracted Conflicts

Though the cases of Cyprus and Sri Lanka are not often connected in comparative studies, there are many compelling similarities both in the roots of their conflicts, and also in their dynamics and the results of attempts to manage and resolve them. There is a strong sense of the historicity of the conflict amongst Greeks, Turks, Turkish Cypriots, as there is between the Sinhalese and Tamil separatists. Historical arguments are often developed as part of a nationalist belief in irrevocable cultural differences. These perspectives are reinforced by their various communities' adherence to different religious beliefs (though there is far more diversity on this issue in Sri Lanka), the use of different languages, and the fear of the perceived irredentist desires of a hegemonic neighbor, or social cultural alliances with other actors or groups in the region said to be part of the same "nation." These differences are traced through mythical and imagined histories, perpetrated by popular stereotypes propagated by politicians and media.

Both islands were colonized several times, finally by the British, and received the full range of both paternal colonialism and colonial neglect. British colonialism in particular was crucial in constructing separate ethnic identities on the islands. Both islands hosted groups which discovered the normative power of anti-colonialist rhetoric in an era in which both superpowers denigrated imperialism (while sometimes practicing it themselves) and were endeavoring to rein in the effects of opening the Pandora's box of self-determination, freed by a popularization of liberal internationalism by Woodrow Wilson at Versailles where for the first time the US took the lead in projecting the shape of international order. In Cyprus, the Greek Cypriots were amongst

the pioneers of the use of asymmetric guerrilla warfare against a colonial occupier whose control rested more on reputation than physical threat (though over 30,000 British troops were used to try to put down the rebellions between 1955 and 1958 and failed). This sort of asymmetric warfare was not new, but increasingly became part of the armory of disaffected and marginalized actors who had not, or could not, receive representation or legitimization within international fora, and then often spread to subgroups which disliked post-colonial power-sharing frameworks which often led to the domination of minorities by majoritarian rule. The abuse of majoritarianism occurred by the Greek Cypriots and by the Sinhala majority, sparking reactions to domination by both the Turkish Cypriots and the Tamil communities in the north and the east of Sri Lanka.

Not least, all of these diverse groups resident on these islands adhere to some view of the hegemonic West as an actor both to be feared and distanced, while being courted and placated. Both islands have been politically, socially and economically isolated. In these cases this was partly by choice: Sri Lanka's majority community feared India and becoming ensnared in Cold War dynamics; the Cyprus Republic was part of the non-aligned movement, flirted with both superpowers, but also sought to distance itself (at least on the part of the majority community, the Greek Cypriots) from its nearest neighbor, Turkey, while effecting an unlikely strategic union with the cultural motherland, Greece. Both islands were occupied several times during the colonial period, partly because of their strategic location (Cyprus still has two sovereign British bases on its territory—the only case of such an arrangement), and collectively carry a memory of subjugation. Last but not least, both territories still host secessionist communities, intent on establishing separate states. Since the troubles began in Cyprus, there has been a UN peacekeeping force present, patrolling the demarcation line created during the conflict of summer 1974, and there have been many attempts to mediate a solution. Sri Lanka too has endured a "peacekeeping" force (in this case from India) and has seen attempts at external mediation. At present, both states are involved in mediation or facilitation processes, and both states have conducted lengthy semantic battles over the nature of mediation, the implications of negotiating with an unrecognized partner vis-à-vis sovereignty, and the acceptable level of input that a third party

can make given the unrecognized nature of their adversary. Furthermore, most if not all of the interactions between the parties concerned are colored by what Mitchell has called the “recognition game”¹⁵ which is played out within the contours of the international system itself, between the actors which have accrued recognition and status and those which are marginalized.

Ultimately, both post-colonial Cyprus and Sri Lanka became laboratories in which the methodology for the experiments of liberal internationalism, in the guise of self-government and self-determination, and territorial sovereignty were supplied to groups inhabiting territories defined most recently by colonial cartographies, which then were expected to make the experiment work. More recently they have become laboratories for the use of CR. Both states have gained the mantle of being among the post-World War II world’s most protracted and longest standing conflicts—along with Sudan, the Middle East, Kashmir, Northern Ireland, among others. In fact all of these conflicts, when examined carefully, have similar elements as outlined above. Furthermore, as I have elaborated elsewhere, a bastardized version of sovereignty has developed on these islands, with what were termed ethnic minorities or communities claiming the duplicate right of self-determination formerly applied to the territory, to be applied to themselves in response to the perceived unfairness of being denied a similar right of self-determination and as a result of discriminatory policies applied by ethnic majorities.¹⁶ This has led to several claims to sovereignty over these islands, all claiming an objective status on the basis of international law, land rights, local legitimacy or international consensus. This is not like the negative or quasi sovereignty described by Clapham or Jackson, but rather is ethnic sovereignty, in which the group begins to organize the institutions and resources associated with territorial sovereignty rather than accept minority status.¹⁷

In the context of these intractable dynamics, conflict resolution approaches were increasingly turned to by internationals, and by grassroots actors on both islands. Yet conflict resolution approaches were regarded as suspect for many years, in that they may have created peace movements that contradicted the ethno-nationalist stances of their respective administrations, or were regarded as ineffective or simply irrelevant. In the 1990s, as conflict resolution approaches increasingly became part of the armory of

the international community and its diplomacy in conflict zones, it made its presence felt through internationally funded activities and organizations, and also was increasingly used by foreign diplomats on the islands.

The next section examines the implications of these dynamics for the deployment of conflict resolution type techniques in Sri Lanka and Cyprus.

Conflict Resolution in Sri Lanka

Unlike Cyprus, independence for Sri Lanka was negotiated. Initially, at least for the first decade of independence, the UNP (United National Party) managed to balance power between its majority Sinhala outlook and accommodation of Tamils through positions in the cabinet and one ministerial portfolio.¹⁸ This accommodation was destroyed by an increasing focus on “Sinhala-only” policies which became part of the much more majoritarian approach to Sri Lankan politics on the part of the SLFP (Sri Lankan Freedom Party), which focused on redressing the grievances of the Sinhala Buddhists. As the militancy of both Sinhala and Tamils grew in the 1970s, intercommunal violence led to a hardening of positions and the new constitution of 1972, which removed the island’s colonial name (Ceylon), made Sinhala the official language, and gave Buddhism heightened status. This downgraded Hinduism and the Tamil language. The polarization this produced laid fertile ground for anti-Tamil riots in 1983, exacerbated by the Sinhala double minority complex, and led to India’s role in backing Tamil separatism in the north during this period. This, of course, heightened the propensity of India to become involved, culminating in the disastrous Indian peace-keeping attempt in 1987.¹⁹ The underlying dynamic has been one of a fear of, or pressure for, secession. As in Cyprus, the difficulty faced by a majoritarian government trying to hold the territory together, and operate in a problematic region, undermined the original post-colonial state.

As with the Greek Cypriots, the Sinhalese argue that they have a “double minority complex” despite the fact that they constitute a significant majority on the island, though not in the region. Greek Cypriots point to the comparatively massive Turkish population

and the Sinhaleses point to the 50 million plus inhabitants of the South Indian state of Tamil Nadu.²⁰

As Wilson has aptly pointed out, Sri Lanka is an 'artificial state' "... bequeathed by decolonisers ... the majority justifies its exclusivism by reference to Western style 'democracy,' i.e. majoritarianism in terms of ethnic (religious and linguistic) numbers."²¹ This is a recurring theme of the literature on Sri Lanka. Bose has argued that the LTTE has constructed its right of separate self-determination in the following way: 'The Sri Lankan Tamils' 'inalienable right to self-determination' (equated, in true Leninist style, with the right to secede and form an independent state), was based on its claim that the Tamils constitute a "unique nation."²² Furthermore, Bose argues that

The grafting of a Westminster-style legislative and party-political system, itself a legacy of British colonial rule, on to the post-colonial political order, had a crucial impact on the exacerbation of conflict between the two major nationalities.²³

Similarly in Cyprus, the establishment of a unitary state, albeit with major constitutional concessions for the minority Turkish Cypriot community, led rapidly to constitutional deadlock in the three years after independence in 1960.

Comparable themes are also taken up by Spencer. He argues that though anthropologists have long pointed out that boundaries are porous and that sovereignties overlap "the modern state is territorially defined through ritualised boundaries which are recognised in international law, and which can only be crossed on the fulfilment of legally defined criteria."²⁴ In contrast with Cyprus, where there was always a question about how one could justify the colonization of a European peoples in the context of British debates about colonialism, Spencer argues that the British colonial authorities in Sri Lanka believed themselves to be involved in a civilizing process via bureaucratization and rationalization processes. (In Cyprus there was a marked absence of a development debate and associated policies). Part of this importation of norms and values was contingent upon nationalism, modeled upon events in Europe during the nineteenth and earlier part of the twentieth century. Spencer argues, with important implications

for both cases under investigation here, that nationalism(s) arose via an

interaction between colonisers and colonised, each with their own cultural practices, and each also acting on interests that were structured by the overarching relations of power. Thus it was that the British set the terms of reference by which national identity would be worked out without anticipating the consequences.²⁵

This is a key dynamic of both the conflict in Cyprus and that in Sri Lanka, which led to the replication of self-determination debates in their minority communities, and ultimately to attempts by both to establish “shadow” secessionist states—again replicating the state creation mechanisms established via the UN through the use of self-determination, to facilitate decolonization after World War II. Krishna, again writing with special reference to Sri Lanka, refers to this dynamic as “post-colonial insecurity:”

By postcolonial anxiety, I refer to the fact that the social constructions of past and present classes in the third world are mimetic constructions of what has supposedly already happened elsewhere: namely, Europe or the West. The story of what once happened in Europe constitutes the knowledge that empowers state elites as they attempt to fashion their nations in the image of what are considered successful nation-states.²⁶

As in Cyprus, “Postcolonial Sri Lanka reflects a tension between the discourse of universal, equal citizenship for all within a nation and the claims of the majority community to special status.”²⁷ As Krishna argues, “The very practices that produce the nation are coeval with its simultaneous fragmentation or unraveling.”²⁸ These are the dynamics that conflict management approaches at the level of “high” diplomacy have been called upon to deal with. Furthermore, Indian intervention in the guise of a peacekeeping force, and a long-standing conflict between Sri Lankan security forces and Tamil Tigers have failed to lead to appreciable gains or trade-offs for either side.

A long-standing stalemate on the battlefield which swung one way and then the other provided the context in which conflict resolution approaches have been used to address the roots of the conflict. Recently, there has been a move to what is potentially the end-game for mainstream nationalist approaches to viewing the conflict, and this eventually led to some promising

developments. There have also been several major setbacks, however. Under the presidency of Chandrika Kumartunga a process of Norwegian facilitation emerged, which, though very controversial, made good progress after its initiation in 2000 (though it was also responsible for much political upheaval). This was reflected in particular in the not incident-free elections of December 2001 in which popular demand for change was reflected in the unseating of the PA (People's Alliance), and the emergence of a new political accommodation both within the Sinhala majority population and between the Tamil and Sinhala disputants. The emergence of a negotiating process, a ceasefire, and the opening up of the north and east of the island to relatively normal traffic was a result of a softening of both sides' ethno-nationalist exclusivism and of the facilitation efforts of Norwegian diplomats.

The development of alternative approaches to the conflict in Sri Lanka has a fascinating provenance. In an extremely isolated regional and international environment in which there is great fear of the regional hegemon, India, and its own Tamil community, on the part of the Sinhala-dominated political establishment there has been an adherence to a simple, classic, form of sovereignty—majority rule—on behalf of both Tamil separatists and Sinhala nationalists derived from the decolonization period's evangelization of liberal democratic, majoritarian and territorially sovereign systems. Sri Lanka is an example of much that could go wrong with this framework. Yet, there are also examples of acute cultural, linguistic, and religious pluralism and diversity in a territory also torn apart by cultural chauvinism.

There is a highly sophisticated conflict resolution network, in which many foreign trained Sri Lankans, spanning the full diversity of Sri Lankan society, operate with funds provided mainly from abroad. This industry and social framework includes individuals who are young and mid-career professions, the clergy, civil servants, as well as grassroots actors. It has links with sympathetic politicians as well as an established voice in the media. There are also a large number of publications, emanating from the island or published internationally by Sri Lankan activists and academics, which illustrate an awareness of, and engagement in, a wide range of debates about the nature of the conflict, and furthermore a significant contribution to the often stale and culturally enclosed debates that circulate within Western academic circles.²⁹

Yet the policies of a series of governments, the political opposition, and of the Tamil Tigers and their supporters appeared at least until recently, to continue to be mired in zero-sum debates about sovereignty, territory, and resources, and attempts to move beyond this found little room for development (at least until the elections of late 2001). Indeed, the then government almost fell over this development, and then was finally ejected in a national election in late 2001; there were wide-scale riots amongst the Sinhala community, and the Tamil Tigers launched several attacks, including on the country's main international airport in the summer of 2001. Top-down debates continued to predominate despite the seemingly widespread and multi-inclusive use of conflict resolution approaches, and the prevalence of indigenous institutions devoted to studying the conflict. Clearly, high-level political actors, especially in the PA, saw conflict resolution and unofficial negotiations as a tool to be exploited as long as it did not jeopardize their existing positions. This was despite the fact there was fairly clear evidence that a "peace constituency" had formed partly as a result of conflict resolution activities—albeit one constructed and informed by Western understandings of conflict and its resolution. Yet, this cannot be regarded as completely irrelevant, given that fact that the conflict is rooted in several Western promoted institutional norms—post-colonial majoritarianism, self-determination (albeit for territories rather than communities),³⁰ and territorial integrity and sovereignty. After the elections, however, it seemed that high-level approaches and conflict resolution approaches finally had a chance to converge, creating a diplomatic peacemaking process that was more in line with grassroots peace activities.

However, this clash between a grassroots and an official understanding of conflict resolution—a sort of cultural confusion between the popularly defined ethnic version of peace and the statist obsession with security and recognition—continued in the context of the furore over the role of the Norwegian "facilitator." Reflecting a long-standing area of contention between Greek and Turkish Cypriots over the nature of UN mediation, the previous Sri Lankan government refused to describe him as a mediator, not wishing to accord any recognition to the other side through recognizing the triangular nature of a mediation process, nor to accord an outsider with a dynamic mediatory role (i.e. with the ability to make proposals). When he did begin to play a more dynamic role

in the summer of 2001, the government accorded him the role of a mediator officially precisely so that they could refuse any contributions he might then make.³¹ After the fall of the government in 2001 a more dynamic role was increasingly tolerated. Similarly, with respect to the possible use of the UN as a spokesman for the Ministry of Foreign Affairs stated, "We do not want ourselves turned into another mess like Bosnia or Sierra Leone through UN resolutions."³² Comparatively, in Cyprus the case has been that the Greek Cypriots have called for decisive UN mediation (which they feel, courtesy of UN resolutions, would favor them) while the Turkish Cypriots have sought to reduce the UN's role to merely procedural facilitation.³³ Thus, even the supposedly non-threatening intervention of a facilitator was fraught with difficulties, though once these were overcome a positive version of peace as an outcome of the conflict on Sri Lanka appeared to become more plausible because dynamics related to security, representation, and recognition could more plausibly be addressed.

In this context, conflict resolution-based approaches, both indigenous and external, have sprung up in an attempt to facilitate development of more harmonious understandings of the other and their political and identity needs, and also to open a pathway in which the state can be reassembled in a new constitutional form. This reassembly is a basic assumption of such approaches, endorsed by the fact that multi-ethnic and plural states have become the liberal norm. The case of Norwegian facilitation is pertinent here (referred to above), to examine the problems that face back-door channels and conflict resolution processes. As Bullion has pointed out, the Sri Lankan government's efforts to exploit Norwegian facilitation have brought to the fore a number of key dynamics and obstacles in efforts to resolve or even manage the dynamics of post-colonial conflict. The previous Sri Lankan government stated the following about the role of such approaches:

We favour the concept of third party involvement rather than adopting the defined roles of facilitation and mediation . . . Playing the role of neutral advisor and observer in our case, the Norwegians can continue to involve themselves in the negotiating process, prevent misunderstanding between the protagonists and to help to promote the forward movement of the dialogue without imposing "judgmental decisions."³⁴

We had in mind the fact Norway is a small country and, therefore, a country which we thought has no agenda of its own.³⁵

Though there has not been any clear attempt to open “back-channels” in the Cyprus case there has been a very similar debate to this between the opposing Cypriot leaders over the role of UN third-party mediation. Essentially, what this debate revolves around is the opening up of a process of third-party mediation in a situation of a hurting stalemate. However, the stalemate in both cases has not been judged sufficiently painful to require decisive intervention. What has transpired in both cases is that one or other party has sought a third-party role which is not decisive, judgmental, and does not impose external norms in the process of mediation and negotiation, nor effectively into any solution that might emerge from this process. Essentially, this has led in both cases to the development of what I have called elsewhere “deviant objectives” in which the disputants defy the Western norm of compromise through mediation, negotiation or facilitation, but use the process itself to maneuver for resources which strengthen its position.³⁶ Even UN involvement has been rejected by the government side.³⁷

Conflict resolution processes on the island seem to be run mainly as didactic workshop sessions and lectures in which eminent members of the establishment, including teachers, municipal officials, local politicians, clergy, lawyers, and other professions, are brought together to present sympathetic views on a particular, pluralist version of what peace would mean for target audiences. For example, one such session involved a mayor, several Buddhist monks, a lawyer, a headmaster, as well as local politicians literally lecturing at a school in the Kandy district in the school assembly hall for several hours on how they believed “peace” could be achieved. This event took place out of school hours in a market town between Colombo and Kandy, a town that had recently suffered intercommunal rioting in which the Muslim commercial community had been targeted. The school itself was ethnically and religiously mixed (though it seemed to be gender segregated) and the opportunity was taken by the organizers to underline some basic discrepancies in the relationships between Sinhala and Tamil communities.³⁸ A basic lecture on conflict resolution was supplied by a member of an NGO based in Colombo,

mainly focusing on coexistence strategies. Attendees included prefects and advanced students, and perhaps the most interesting approach was taken by a Buddhist monk who gave an interpretation of peace in Buddhist philosophy directed at the majority group in the audience of Buddhist Sinhalese. This was particularly interesting, bearing in mind the fact that the clergy in Sri Lanka had attempted to replace their lost influence with the advent of the modern secular nation state by adopting majoritarian nationalism, which had been successful in retaining their influence and privileges. Peace was described as intercommunal harmony. Local MPs from various political parties also gave their interpretation. During the course of the session, in which the language used was mainly Sinhala, it became clear that though Tamil students spoke Sinhala, Sinhalese students did not speak Tamil, a fact which was made much of by the school's headmaster (this is very similar to the linguistic politics relating to the use of Greek and Turkish in Cyprus, where Turkish Cypriots speak Greek but not vice versa). There was a very clear attempt to provide a culturally-specific discourse of peace, though there was also a consensus that the liberal West provided a model to be aspired to.³⁹

A seminal moment in the role of civil society in the peace process occurred in 1994 when a large media campaign against election violence struck a chord with large sections of the electorate, many of whom were to later form what has been identified as a peace constituency.⁴⁰ This opened up the possibility of creating a peace movement involving civil society, as since the 1950s all attempts at negotiation had occurred on high-level platforms controlled by government. The National Peace Council (which had organized the above-mentioned workshop), an example of this sort of organization, provides a platform for a wide range of ethnic and religious sectors of civil society. Indeed, the organization of the NPC was based upon a detailed academic knowledge of conflict resolution debates at a level rarely encountered by this author in the Cyprus context. This organization applies Lederach's pyramid model⁴¹ developing the strategies of research, training, dialogue, and process in order to bring disputants together and to bring the government to the realization that they must address the aspirations of the peoples. Amongst the research that was being carried out were reports on the cost of the war in economic and social terms, public opinion surveys, and advocacy

media campaigns. Training revolved mainly around conflict resolution projects on listening and communication, and dealing with interpretations of history. They had also run projects involving significant numbers of MPs, and for this project had received messages of support from the President, the LTTE, and the leader of the opposition. Indeed, after government forces lost Elephant Pass in 2000, the government had approached the NPC and asked it to contact the LTTE, seeing it as a plausible method of making contact with a non-state actor without violating its own stance on sovereignty. Thus, the NPC has made an effort to develop projects at different levels of the social and political strata. Much of the funding for this particular organization came from regional development funds, and later from International Alert, USAID, and NORAD. Other sources have included the Dutch government and the British High Commission. Interestingly, a Canadian funding source was rejected several years ago because the funders wanted too much input, requiring the NPC to forge alliances with other NGOs. This was unacceptable to the NPC because of ideological differences, indicating the potential for the politicization of the funding process and relationship.

Despite the fact that NPC often draws on Western sources of funding and is well-versed in the debates derived from Western literature about conflict resolution, it is clear that such approaches do not really translate well in the Sri Lankan context. The sites of power identified in the Western literature lie at the official political level and within civil society, and depend upon flexible relationships between the levels, and on civil societies' realization of its politicized nature. Yet the actual sites of power, politicization of civil society, communication processes between politicians and active members of society, and the actors (in this case such as the Buddhist clergy) who filter such communication, vary from case to case. Indeed, one particular interviewee argued that the Westphalian states-system had been transplanted into Sri Lanka without the social development and conditions that had occurred in the West. Thus the state became an instrument for control and advancement of a semi-feudal elite. There had been no secularization process, no free market, and "rulers" were elected, not leaders. Given this type of analytical stance, it came as no surprise that this organization was running a core group discussion in which several MPs discussed the problem of sovereignty, the role of mediation

between a sovereign and non-sovereign actor (asymmetric negotiations in other words), and the need for a “rethink of the nation state” in the context of a contradictory and heightened ethnic consciousness. This illustrates the potential for a cross-over between official and unofficial approaches in practice.

Another important organization is ICES (International Centre for Ethnic Studies) of which there are two distinctive branches, one in Colombo with more of a conflict resolutionist approach, and one in Kandy with a determined conflict management approach (described as a more “academic” approach).⁴² The name of this organization implies the elevation of ethnic identity as a focus for understanding the conflict. Again a number of different projects were underway, one on tolerance in border villages, another on women and violence.⁴³ The Director of ICES (Colombo) intimated that there was a certain tension between the two branches and argued that part of the problem they both faced was that funding for their activities was increasingly becoming results oriented, which reflected the difference in their approach, one being more practically oriented rather than academic. Funders such as the Ford Foundation, Norad, Canadian, and Swiss sources were intent on gaining a return on their “investments,” by focusing on activities that showed concrete results, often at the expense of high quality academic research. The branch in Kandy had built up a network of scholars in South Asia which was exploited in terms of publications and conferences. The Director’s view (Kandy branch) was that peacebuilding had proven ineffective in Sri Lanka, and more generally in South Asia, its main weakness being the lack of credible guarantees between opposing parties without the presence of military force. The role of explicit mediation, he argued, had been discredited by the role of India, and of course, by its use of force in 1987.⁴⁴ This is why the Norwegian mediation process had opted for the denomination of ‘facilitator,’ and also why the government expected it to play a purely procedural role. Given views such as this, it is no surprise that they were associated with a strictly territorial understanding of the sovereignty of the state of Sri Lanka. This reasoning was part of an elaborate numerical and demographic breakdown offered, which was used in this case to undermine the territorial claims of the LTTE, who at that point were arguing that their security demands could only be fully met if the north and east of the island

secede. The LTTE understanding of “peace,” he argued, was based on absolute control of territory, whereas the Sri Lankan government’s position was based upon an extension of the rule of law from government-controlled areas. Compounding the problem was the fact that he believed that the West was unaware of the nature of the claims of the LTTE as a representative of a minority.⁴⁵

Other criticisms of CR were also encountered, especially of those involved and the wider interests that might motivate such intervention. As there was no discussion of the sovereignty issue until the recent rapprochement, the role of third parties in CR was sometimes criticized as validating the claims of non-sovereign actors by placing them on an equal footing as state representatives. Similarly, as outlined above, the role of Norwegian facilitation also carried problems associated with recognition of the LTTE. Cyprus has also been used as a negative example of all of the reasons why foreign intervention is not required, because it might legitimize the *de facto* situation.⁴⁶

The interconnection between conflict resolution and high-level approaches has been widely publicized by the NGO sector. For example, Jehan Perera, Director of the National Peace Council, argues that,

political leaders cannot implement a peace agreement that is not supported by the general population or influential groups in civil society. Sometimes they cannot even begin to negotiate a peace agreement unless there is popular support for it and a build-up of popular expectations concerning the need for them.⁴⁷

This has proven to be the case, in that in the elections held in 2001 the UNP won mainly because it had much better access to the LTTE areas and because Ranil Wickremesinghe had spoken of devolution for the LTTE areas while preserving the territorial integrity of the state—something which clearly struck a chord in the electorate. Interestingly, the subsequent attempts to broker an agreement partly stemmed from a growing belief that the failures of the economy are linked to the cost of the war,⁴⁸ despite a government “prosperity program” used to gain allegiance (aid was being sent to almost 60 percent of households by this point). After the elections in 2001 things began to move very quickly, leading to negotiations facilitated by Norwegian diplomats and officials on

a memorandum of understanding which would consolidate the ceasefire and set up human rights protection mechanisms. However, the Memorandum of Understanding that emerged quickly out of the restart of negotiations between the LTTE and the new government in early 2002 was arrived at with no input from the former government and new opposition (of which the President was also a member).

Debates about a third-party role in this new phase of the peace process initially focused upon the rather arcane discussion about whether the Norwegian third party, Eric Solheim, was a mediator or facilitator. This can be put down to the sensitivities of the Sri Lankan government about intervention. Solheim was seen as sympathetic to the Tamils and very soon stepped over the lines of facilitation. The Norwegian peace mission tried to incorporate the discourse of human security into a peace process, though its role is based upon facilitation and the model that led to the now failed Oslo Accords.⁴⁹ The tactic was to introduce the concept of human rights into the discourse by persuading the government to drop its embargo on the LTTE-controlled areas. However, the process is seriously complicated by the fact that the Tamil side want to be regarded as equals to government negotiators (made more difficult by the fact that post September 11, 2001, the LTTE became increasingly susceptible to international proscription). However, given the change of government and the new government's attitude to a solution, the Norwegian facilitation that had already taken place then provided a model for the attainment of a solution after the election. Indeed, the Norwegians were also then asked to play a role in monitoring the ceasefire. Their role rapidly grew from facilitation to more direct involvement in the political and military aspects of stabilization and finding a solution. President Kumaratunga argued that this role was incompatible with the sovereignty of the state.⁵⁰ Certainly this was true, but popular feeling seemed to have drawn the conclusion that a sovereignty which could not be enforced might not be worth fighting for, and the focus had shifted to consensus building for a new form of sovereign arrangement.

Despite this, the President intervened in the peace process in late 2003 in order to prevent what she saw to be the danger of giving away too much to the LTTE. In what was basically a strategic overthrow of the government, she sacked three ministers,

suspended parliament and sent troops onto the streets, arguing that the government had made too many concessions to the LTTE.⁵¹ Essentially, she took control of the peace process and declared a state of emergency in what was seen as a reversion to a more traditionalist nationalist strategy and an attempt to bypass the “peace constituency” that had emerged in the parliament, government, and populace. How far this peace constituency has contributed to the freeing up of generally intractable government and opposition posturing and high-level discourses about the conflict is open to debate, however. The elections in December 2001 did result in a heightened anticipation that an agreement could be reached,⁵² despite the fact that Tamils from the disputed zones were prevented from voting. The LTTE demanded that the ban it was under be lifted before it took part in the Norwegian-brokered talks, though both sides declared ceasefires and the government lifted its economic embargo on the LTTE controlled areas. This seems to have sounded the end of the “war for peace” approach of the previous government, and indeed the LTTE leader, Velupillai Prabhakaran, emerged from hiding to intimate that the claim for a separate state might be dropped.⁵³ Yet, the recent activities of the Sri Lankan President seem to have undermined some of the ground gained by the more flexible approach to the peace process adopted after the election in late 2001 by the government and the LTTE.

Clearly, in the case of Sri Lanka, conflict resolution approaches have aimed at the accommodation of both disputants’ legitimate interests, and despite difficulties related to its cultural derivation and the cultural dissonances of funders and organizers alike, paucity of funds, and its relatively small scope, such activities have been very important in keeping any sort of peace process alive while high level politics, nationalism, and militarism exhausted themselves.

Conflict Resolution in Cyprus

The dynamics of the conflict in Cyprus fit very closely to Azar’s model for protracted social conflict. The conflict is clearly located on the fault-line of territorial sovereignty and self-determination, with important regional and local dynamics which are inter-related. It touches also upon issues related to international

security, minorities and majoritarianism, history, culture and identity, economic differentials and social status. The conflict has undergone many permutations, but its most recent form revolves around the Turkish Cypriot claim for separate sovereignty after the 1974 Turkish invasion on the basis of a need for security against Greek and Greek Cypriot extremism, and Greek Cypriot claims for a unitary or federal state that would enable refugees to return. Soon after independence in 1960, the constitutional safeguards for the Turkish Cypriot community (partly installed to prevent Turkey from making a claim against Cyprus) began to be undermined by Greek Cypriot nationalists. This led to a breakdown of the constitution in 1963, UN intervention, and an 11-year stalemate over constitutional reforms. In 1974, the mainland Greek military Junta launched a right-wing coup against the island's President. This allowed Turkey to intervene and create a homogenous territorial zone for the beleaguered Turkish Cypriot community, which effectively partitioned the island. When negotiations restarted, agreements were reached by 1977 to negotiate distinct territorial ethnic zones in a federal constitution. However, since then the Turkish Cypriot side has made a claim for separate sovereignty, something that the Greek Cypriot side is determined to prevent. This has meant that there was little contact between the two communities after 1974 until the Turkish Cypriot side opened up the "green line" in 2003, and no progress in negotiations since 1977. Recently, the internationally recognized Republic of Cyprus controlled by the Greek Cypriot government has made a successful application for EU accession, which initially heightened tension with Turkey and the Turkish Cypriots for a number of reasons. UN peacekeepers have been present on the island since March 1964, and though they were not mandated to intervene in the war of 1974, they have successfully patrolled the ceasefire and fulfilled the role of providing a relatively stable environment in which peacemaking can occur. However, the UN force has become part of the conflict landscape in Cyprus and there has been dissatisfaction with the comfortable status quo it has helped provide, which some have argued has hindered the conflict's resolution. Recently, a breakthrough seemed possible on the basis of a new UN plan. Since a referendum on the 'Annan Plan' in April 2004 failed, the island has joined the EU but a solution still seems remote and the status of the Turkish Cypriot community is still unresolved.

Conflict resolution workshops bringing together both communities have taken place since the late 1960s with negligible general effects upon the two communities' ethno-national stereotyping or official negotiating positions. Furthermore, because of both sides' sensitivities over third-party intervention, mediation has generally been limited to quiet diplomacy and good offices, which approximate a facilitative role rather than direct mediation. In addition, as a result of the establishment and training of sympathetic citizens by Western trained foreign exponents of conflict resolution, and, initially at least, a small number of local sympathizers, there is a solid core of civil society activists and sympathizers. However, there have also been many problems, not least with the official position of both Greek Cypriot and Turkish Cypriot administrations that indicates, if not antipathy, then certainly a level of suspicion. As with Sri Lanka, Cyprus has been used as a laboratory in which such approaches have been developed and tested, and their wider impact, though very difficult to assess, seems to have been limited. As in Sri Lanka, political progress has tended to depend on nationalist constituencies and their leaders, limited by the constraints that official state-nationalism and ethno-nationalism have set. These debates are socially enforced by professional and social codes, both in Sri Lanka and Cyprus, which tend to act as significant constraints on the activities and impact of those who sympathize with the aims of the various conflict resolution programs and activities. Both discourses tend to delineate different axes on the political agenda, and appear to be highly resource dependent, particularly in terms of the fairly constant cultural terms of reference all disputants tend to reify the other with.

The role of PRIO (International Peace Research Institute, Oslo) provides an interesting insight into conflict resolution in Cyprus. PRIO has also been involved in regional aspects of the conflict, working on "Human Rights and Peace in Turkey and the Eastern Mediterranean" as well as being involved in the Greece-Turkey forum in association with RUSI (Royal United Services Institute, London).⁵⁴ Its role in Cyprus is derived from Richard Holbrooke's business community ideas, in which he tried to establish lines of communication and cooperation for business leaders in both communities in order to facilitate normalization. Holbrooke approached the then Norwegian State Secretary for Foreign Affairs to establish a joint project in Cyprus in 1997.⁵⁵ This

was based upon a Greek-Turkish Forum that had been established and run by RUSI and endeavored to bring together business, military and political leaders to facilitate an improvement in Greek-Turkish relations by developing contacts between them. PRIO used pragmatic methods to approach business people, of which 25–30 were involved. The brief from the Norwegian government was broad and, in terms of funding, open-ended, forming part of the Norwegian tradition of civil society building for which large sums of money had been allocated via NORAD for NGOs and their roles in peacebuilding and conflict resolution (as is also reflected in Sri Lanka).

The Director of the PRIO project in Cyprus argued that Cypriots found conflict resolution methods restrictive and condescending in that they often expressed the fear that they were being told what to do and what to think. He argued that the process has created important bonds between businessmen, but that the contacts have been subjected to such heavy politicization that any benefits had been blocked. Furthermore, the Turkish Cypriot leadership's attitude to conflict resolution is somewhat hostile, and there also seemed to be some efforts to exert control on Greek Cypriots partaking—particularly those who were civil servants.⁵⁶ Turkish Cypriot nationalists seem mainly to see conflict resolution as irrelevant to a process which lay ultimately not in the hands of civil society but more in the hands of the main political leaders from the north and from Turkey. The PRIO director also argued that the US Fulbright to CR approach emphasized sameness through conflict resolution rather than understanding differences, which was more in line with PRIO's approach. He expressed uneasiness at the claim that Greek Cypriot nationalists have often made that conflict resolution processes are endeavoring to legitimize ethnic cleansing in Cyprus through their focus on a bizonal solution rather than a return to the 1960 constitutional arrangements.

A second organization involved in CR in Cyprus is the Bi-communal Trainers Group, established locally in 1994, which has been partnered with similar groups in Israel as well as organizations in the US, using a mixture of approaches, ranging from principled negotiation to psychological empowerment and spiritual approaches. This organization has purposefully avoided taking on an official status in order to have more freedom to negotiate the problem of the relative status of the two communities.⁵⁷ It was

initiated by individuals within civil society and has been funded by USAID through the Fulbright organization, which turned to conflict resolution funding after the immediate post-war humanitarian needs had been met.

The role of the US Fulbright organization in Cyprus merits further attention.⁵⁸ The Fulbright has been involved in distributing funding for Cypriots from all communities to study in the US since 1961, and after the conflicts during the period 1963–74, was able to continue to work in both communities because of this. Indeed, the Fulbright has often been the only organization that was able to work in the north even when other organizations had been prevented from gaining access because of the Turkish Cypriot leadership's opposition to conflict resolution processes. This has mainly been because of the funding the Fulbright distributes to Turkish Cypriot students. It has regularly provided around \$10 million per year for bicommunal work in Cyprus through USAID in a highly structured, rather than ad hoc, operation.⁵⁹ This enabled the Fulbright, with the support of its Greek Cypriot director, to become involved in conflict resolution, exploiting links with academics at US institutions which were interested in developing their approaches and contributing to a Cyprus solution. Though this carried the problematic dynamic of using Cyprus as a "guinea pig" for experimentation, it has been clear that both participants, trainers, and funders have generally not seen this as a serious problem (with perhaps some exceptions on the part of the funders). The genesis of this cross-over from educational assistance to conflict resolution funding developed from a meeting in 1993 between local Fulbright graduates from both communities. From these small beginnings, 15 workshops mainly run by US scholars and exponents of conflict resolution have developed. In 2000, the funding for conflict resolution was reallocated to the US embassy in Cyprus, prompting criticism that this would politicize an already fragile process, and also that the US embassy wanted control of the process. This occurred after a number of criticisms had been made about the ineffectiveness of the process, and possible favoritism in the allocation of funds for conflict resolution. However, much of the "peace constituency" that currently exists in Cyprus is as a result of the pioneering work of the Fulbright in this field, which has managed to bring several hundred people into such contacts. Though there has been much opposition, such

debates have become part of the public consciousness and have played a role in developing an awareness that there may be alternative paths out of the conflict, though there is no empirical evidence to show that such processes have had a direct impact on developments in the official negotiation process.⁶⁰ Indeed any developments that may have occurred have mainly been because of structural changes in the regional or international environment such as the rise and wane of the Cold War, the application of the Republic to join the EU and impending accession of the island in May 2004, or US and European financial or strategic pressure on Turkey.

This has been the reasoning mainly employed in policy circles, which have focused increasingly on the need for a conflict resolution type contribution to high level diplomacy rather than merely on CR's social intervention. US embassy officials in Nicosia tend to present a certain pessimism about the ability of conflict resolution processes to make an overall contribution to elite level negotiations, and furthermore a perception of a need for diplomats to take firm control of conflict resolution in order to help develop a clearer link between the two activities to make it more "effective."⁶¹ From these discussions it emerged that the money allocated by the US congress (about \$15 million per annum) for bicommunal work and to UNDP (\$10 million) was actually supposed to function in terms of providing support for Track I processes. Much of the impetus from the provision of this money comes from the manner in which the Greek-American lobby has been able to express itself in terms of the liberal goals of conflict resolution in the region vis-à-vis US foreign policy. While higher level actors saw this US position as problematic, it was popular at lower levels particularly because the bicommunal activities had shifted from standard conflict resolution work to professional training activities which, incidentally, were also bicommunal. The US embassy's official position is clearly that there should be a definite linkage between Track I and Track II processes—hence the embassy's move to take control of the allocated funding in order to develop this linkage further. Their priority was clearly the Track I process, however.

Indeed the criticism has been made that the Fulbright organization had not tried to develop the capacity of conflict resolution as a tool and had constantly retrained the same participants. Indeed, a common view is that conflict resolution has run its course and the key contribution it can now make is in the more indirect

form of professional training, which has included such projects as “earthquake response training.” Much of the same methodology still applies, however, in that such projects focus on younger professionals from both communities. Accordingly, the failure of this mechanism could be ascribed to the failure of selection and the planting of “spoilers” in the groups that undergo professional training. This seems to indicate the fact that conflict resolution is seen as a tool of social engineering, in order to instill certain norms exported from the higher reaches of the international hierarchy of states—with powerful, peaceful states playing the liberal and somewhat neo-colonial role of normalizing deviant communities. Interestingly, it was also argued that US-sponsored conflict resolution processes could not promote the role of the EU because Congress aimed at promoting US values and business contacts.

There are a variety of views within both communities and amongst politicians, reflecting the belief that grassroots conflict resolution activities are crucial or can contribute to an overall settlement by preparing the ground, to the belief that they cannot produce any political result⁶² or constitute a betrayal of ethno-nationalist views.⁶³ Reflecting views amongst activists involved in the conflict resolution movement in Cyprus is the argument that such processes should be run by indigenous grass-roots actors and that there were no conflicts of interest created by outside training, trainers, or funding, that there should be more linkage with high politics and that officials should also be trained in conflict resolution practices.⁶⁴ Prevalent amongst the Turkish Cypriot leadership is the view that conflict resolution processes have no impact upon politics and high-level negotiations,⁶⁵ though their actions in occasionally closing the border to prevent conflict resolution meetings seem to indicate some fear that there may be an impact after all. Nationalist sectors of the media have been particularly critical of conflict resolution processes in both communities, accusing the participants of being traitors, picked by the US in particular (or other liberal states) for their role, and betraying their own community. Other claims, more often from the Turkish Cypriot community, focus on the irrelevance of such processes.⁶⁶ Denktash himself has argued that bicommunal processes are endeavoring to “brainwash” and bribe Turkish Cypriots, and are being used to “stir up trouble.”⁶⁷ This is indicative of the fact that they *do* have an impact in potentially delegitimizing ethno-nationalist and

exclusionary debates in societies where mainstream positions depend upon their sustenance.

As in Sri Lanka conflict resolution faces the difficult issues of recognition and multiple claims over territorial sovereignty. Furthermore, some of its principle funders and organizers have demonstrated a frustration with the lack of visible results their investment has shown over time. Despite the seeming intractability of such issues, conflict resolution in Cyprus has found and consolidated a group of people who value "resolution" more than the supposed losses that a solution would bring to both sides. This has been very important in creating legitimacy for a discourse of peace based upon accommodation rather than ethno-nationalism. This can clearly be seen during the incident-free period since the green line was opened up in 2003 with Cypriots now able to have relatively unhindered contacts.

Conclusion

Ultimately, as the above discussion of conflict resolution in Cyprus and Sri Lanka has endeavored to suggest that conflict resolution has the following main roles: (1) to provide an innovative, liberal but often acultural social forum for exchange to undercut ethno-nationalism; (2) to complement high level approaches such as mediation and peacekeeping; (3) to normalize problem states by exporting a package of communicational values drawn directly from the Western socio-political experience, mainly by empowering grassroots and civil society to have more say over the actions of their elites, rather than vice versa.

In both Cyprus and Sri Lanka, there are two very politicized approaches to conflict resolution processes; grass roots actors and officials both held similar views in similar proportion, along the lines of the following. Many believed that the kind of skills and contacts gained from the process were highly important in creating the conditions for a future peace. These people did not tend to question the motives of the organizers, trainers, or funders, and discounted any importance here, generally arguing that that contacts that were being provided were more significant. The other approach was one of deep skepticism in which either the application of these approaches undermined the unity of each side, its objectives, and even worse threatened to make

past sacrifices meaningless by legitimizing the objectives of the other. From this perspective, the motives of the interveners were seen to be self-interested. Some argued that this was an example of social engineering, undermining the cultural foundations of their society. Others argued more simply that the types of people and socio-political strata involved could not hope to have an impact on the problem. This raises the broader question of what the objectives of conflict resolution should be—whether to contribute to an overall settlement or to allow citizens to explore their situation vis-à-vis the other. Both views were expressed in the samples I examined, though I found much less liberal views in the policy community, spread amongst those who believe conflict resolution's objectives are to persuade the other side of the righteousness of their positions, and those who feared its encouragement of a "radical" fringe.

In both cases, the establishment of a unitary state, albeit with major constitutional concessions for the minority community, led rapidly to constitutional deadlock in the years after independence. This is a key dynamic of both the conflict in Cyprus and in Sri Lanka, which led to the replication of self-determination debates in their minority communities, and which ultimately led to attempts by both to establish "shadow" secessionist states—again replicating the state-creation mechanisms established via the UN to facilitate decolonization after World War II. Both conflicts reflect a tension between equal citizenship within a state and majoritarian claims. This causes the majoritarian post-colonial elites, summarily appointed through negotiations with the former colonial power, to lead to destabilizing relationships between ethnic groups and with regional neighbors, as well as promoting a discourse of majoritarian versus ethnic justice and recognition in the international community, often played out in the forum of the UN General Assembly—as was particularly the case in Cyprus. This raises the question of what can be done in the face of conflicting claims to self-determination. In both cases, which have seen significant change and accommodation recently, it seems that conflict resolution processes are suited to opening up debates about self-determination in a context beyond that provided by standard majoritarian political debates, though CR also finds it very difficult to resist the powerful rationalism and resources inherent in the latter. Since the ceasefire in Sri Lanka and the opening of

the green-line in Cyprus, it has become clear how important the conflict resolution processes that took place before these events actually were in pioneering social contact between two divided populations. This effectively prepared some ground for the opening up of contacts on a broader basis between the communities on both islands.

However, clearly there are social and cultural obstacles as well as political obstacles to the achievement of CR; these obstacles have led to a funding squeeze and an experimentation with professional training also following Western models in order to deliver more concrete results. This seems to overlook the claim that CR makes to the development of longer term peace constituency (born out to a certain extent by recent events on both islands), the development of which can clearly be charted in both Cyprus and Sri Lanka—though its specific contribution to the emerging settlement processes on both islands would be very hard to define or quantify. These findings are important because they indicate that around the methodology and processes that exist in conflict environments where there are long-term conflict resolution processes, a community has indeed grown up. A debate exists between those who support the processes and rejectionists, and in some way this encourages a broader discussion at the policy level and also a deeper discussion in some sectors of the grassroots level. Precisely how this dynamic operates has yet to be examined.

Out of this study arise some propositions about the role of CR in Sri Lanka and Cyprus: that contact with the other is a popular and worthwhile end in itself and is understood to be so by policymakers without necessarily producing a settlement in the short term; that civil societies' desire for contact with the other gives rise to such fora and processes autonomously. Furthermore, conflict resolution arises as a response to a failure of traditional high-level diplomatic efforts but also is envisaged as having a complementary role, at least by policymakers. It is seen as a balance for state-centric methods of conflict management that further legitimizes the role and power of officials at the grassroots level, and by doing so democratizes the process of making of peace. Given that most funding comes via major liberal Western states, conflict resolution is also perceived as a backdoor way to peace (shaped by the understanding of "peace" of dominant states) by those states that wish to expand their hegemonic influence and require legitimate

access to civil society. However, local and international consensus for the use of CR seems to have been undermined to some extent by a paucity of funds in Sri Lanka, and by a shift towards results-based professional training approaches in Cyprus. In both cases, it seems, the dilemma remains that CR is seen more as a tool of political and social engineering by liberal minded, Western trained actors. Yet those actors (and principally funders) are motivated by a need for quick and visible results and thus are afflicted by a short-termism that threatens to undermine the original purpose of conflict resolution approaches.

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Notes

1. I use conflict resolution here to denote non-official forms of mediation—facilitation and project oriented approaches to responding to conflict.
2. See Oliver P. Richmond, “Rethinking Conflict Resolution: The Linkage Problematic Between ‘Track I’ and ‘Track II,’” *The Journal of Conflict Studies*, Vol. 22, No. 2, 2001.
3. For an excellent discussion of the various aspects and implications of this debate, see Tarja Varynen, *Culture and Conflict Resolution* (Manchester University Press, 2001). See also Diane Francis, *People, Peace and Power* (London: Pluto, 2002), esp. p. 140.
4. As Varynen has pointed out, this notion of rethinking conflict in such a way is somewhat contradictory as the human needs framework provides an implicitly acultural and possibly totalizing universe. Varynen, pp. 2–7.
5. For more on this see, for example, J. Burton, *Conflict Resolution and Prevention* (London: Macmillan, 1992); Herbert Kelman, “Social-Psychological Dimensions of International Conflict,” in William Zartman and Lewis Rasmussen (eds.), *Peacemaking in International Conflict: Methods and Techniques* (Washington, DC: United States Institute of Peace Press, 1997), p. 195.
6. Robert C. Schehr and Dragan Milovanovic, “Conflict Mediation and Post-modern: Chaos, Catastrophe, and Psychoanalytic Semiotics,” *Social Justice*, Vol. 26, No. 11, Spring 1999, p. 208.

7. See for example, a report on the CR work of the Fulbright in Cyprus. Marion Peters Angelica, *Conflict Resolution Training in Cyprus: An Assessment*, unpublished report, July 1999. .
8. Kevin Avruch, *Culture and Conflict Resolution* (Washington: USIP, 1998), part I.
9. Ibid., pp. 83–90.
10. Cited in Ibid., p. 92 and p. 97.
11. Ibid., p. 98.
12. Raymond Cohen, "Language and Conflict Resolution: The limits of English," *International Studies Quarterly*, Vol. 3, No. 1, 2001, p. 27.
13. Karin Aggestam, "Identity and Conflict Resolution: The Construction of a Third Culture of Negotiation," *Fourth ECPR*, 8–10 September, 2001, pp. 11–3.
14. See, for example, Louis Kriesburg, "Varieties of Mediating Activities and Mediators in International Relations," in J. Bercovitch (ed.), *Resolving International Conflicts: The Theory and Practice of Mediation* (London: Boulder, 1996), p. 226.
15. C. Mitchell, "External Peacemaking Initiatives and International Conflict," in Manus Midlarsky (ed.), *The Internationalisation of Communal Strife* (London and New York: Routledge, 1992), p. 277.
16. See Oliver P. Richmond, "States of Sovereignty, Sovereign States, and Ethnic Claims for International Status," *Review of International Studies*, Vol. 28, No. 2, 2002. See also, Shashi Tharoor, "The Messy Afterlife of Colonialism," *Global Governance*, Vol. 8, 2002, pp. 1–5; Eghosa E. Osaghae, "The Role and Function of Research in Divided Societies: The Case of Africa," in Marie Smyth and Gillian Robinson, *Researching Violently Divided Societies* (UNU/Pluto Press, 2001), p. 18.
17. See Christopher Clapham, "Degrees of Statehood," in *Review of International Studies*, Vol. 24 (1998). See also Robert H. Jackson, *Quasi-states: Sovereignty International Relations and the Third World* (Cambridge: CUP, 1990), p. 150.
18. Alan Bullion, "Civil Conflict in Sri Lanka—Problems of Consolidation and Prospects for Peace," Unpublished paper, 2002, p. 2.
19. Ibid. For an excellent analysis of this see Alan Bullion, *India, Sri Lanka, and the Tamil Crisis 1976–1994* (Pinter, 1995).
20. A. Jeyaratnam Wilson, *Sri Lankan Tamil Nationalism* (London: Hurst, 2000), p. 136.
21. Ibid., pp. 136–7.
22. Sumantra Bose, *States, Nations, Sovereignty Sri Lanka, India and the Tamil Eelam Movement* (Sage, 1994), p. 14.
23. Ibid., p. 28.
24. Benedict Anderson, cited by Jonathan Spencer (ed.), *Sri Lanka: History and the Roots of Conflict* (Routledge, 1990), pp. 25–7.
25. Ibid., p. 39.
26. Ibid., p. xix.
27. Ibid., p. xxxiv. For the Cyprus case see Hubert Faustmann, "The UN and the Internationalisation of the Cyprus Conflict, 1949–58," in Oliver P. Richmond

- and James Kerlindsay (eds.), *The Work of the UN in Cyprus* (London: Palgrave, 2001), pp. 3–6.
28. Krishna, p. 207.
29. In particular see Sankaran Krishna, *Postcolonial Insecurities* (University of Minnesota Press), 1999.
30. The practice of self-determination was often played out, particularly in the context of the UN General Assembly in the framework already provided by the colonial territorial cartography of the state, which was very much a multi-ethnic cartography. Yet the popular perception of self-determination leading to independence was that communities could claim this right. This debate was confused further by General Assembly resolutions proclaiming the use of force may be legitimate in certain cases. Where a people have been denied the right to self-determination by armed force, the right to regain it by armed struggle is considered permissible under Article 51 of the UN Charter concerning self-defence. See *UN General Assembly Docs.* 3070, 3103, 3246, 3328, 3481, 31/91, 32/42 and 32/154. The Geneva Declaration on Terrorism states: “As repeatedly recognised by the United Nations General Assembly, peoples who are fighting against colonial domination and alien occupation and against racist regimes in the exercise of their right of self-determination have the right to use force to accomplish their objectives within the framework of international humanitarian law. Such lawful uses of force must not be confused with acts of international terrorism.” See *UN General Assembly Doc. A/42/307*, 29 May 1987.
31. See for example, the editorial in *The Island*, 4 January 2002.
32. “Sri Lanka Against UN Intervention,” Xinhua News Agency, May 22, 2000.
33. Oliver P. Richmond, *Mediating in Cyprus* (London: Frank Cass, 1998), esp., Conclusion.
34. Cited in Alan Bullion, “Norway and the Peace Process in Sri Lanka,” conference ‘From Violence to Politics,’ INCORE, The University of Ulster, Derry/Londonderry, June 27–30, 2001, p. 7.
35. *Ibid.*, p. 9.
36. See Oliver P. Richmond, “Devious Objectives and the Disputants: Views of International Mediation: A Theoretical Framework,” *Journal of Peace Research*, Oslo, Vol. 35, No. 6 (1998).
37. *Xinhua News Agency*, “Sri Lanka Against UN Intervention,” May 22, 2000. “We do not want ourselves turned into another mess like Bosnia or Sierra Leone through U.N. resolutions,” according to a spokesman for the Ministry of Foreign Affairs.
38. Kadugnawa School, *Participant Observation*, July 14, 2001.
39. My own presence as a Western academic was also used to “validate” the discussion of peace and I was given a role in opening the session in a brief religious ceremony.
40. NGO Personnel, Personal Interview, July 13, 2001.
41. John Paul Lederach, p. 39.
42. Professor K.M. De Silva, Personal Interview, July 17, 2001.
43. Vikram Singh, Director, ICES Colombo, Personal Interview, Colombo, July 13, 2001.

44. K.M. de Silva.
45. A US-based Sri Lankan academic, also associated with ICES in Kandy, argued that the government's anti-interventionary stance was ambiguous because they allowed NGOs to become involved (in other words, to intervene), even if they provide assistance to the LTTE. This constituted a separation of humanitarian operations and conflict issues on the part of the Sri Lanka government, but an interesting blurring of them on the part of this respondent. He stated that ICES and NPC are often criticized by Sinhala nationalists as being too liberal. However the government had found that the NGO community was a convenient vehicle to get aid and humanitarian assistance to the LTTE controlled areas. Stanley Samarasinghe, Personal Interview, Kandy, July 18, 2001.
46. Diplomatic source, Personal Interview, Colombo, July 14, 2001.
47. Jehan Perera, "More Civic Action to Promote Peace Process is Needed," *NPC Weekly Bulletin*, October 22, 2001.
48. Stanley Samarasinghe, Personal Interview, Kandy, July 18, 2001.
49. Jonathan Steele, "Crouching Tigers, Hidden War," *The Guardian*, May 10–16, 2001, p. 12.
50. Cited in Jehan Perera, "Appreciating the President's Lament," *NPC Weekly Report*, 3 March, 2002, p. 2.
51. "Emergency declared in Sri Lanka," *BBC News*, Nov. 5, 2003, http://news.bbc.co.uk/1/hi/world/south_asia/3242667.stm.
52. "A Vote for Peace," *The Economist*, Dec. 6, 2001.
53. See "Tamil leader breaks cover to bring peace hope," *The Guardian*, April 10, 2002.
54. *PRIO Annual Report*, 1999, pp. 29-30.
55. Tront Jenson, Personal Interview, Nicosia, April 3, 2001.
56. Indeed, in this researcher's experience, the Greek Cypriot press could be particularly vitriolic towards those who were seen to be interested in conflict resolution, condemning outside intervention and those who took part as betraying just Greek Cypriot positions.
57. Marios Michaelides, Personal Interview, March 29, 2001.
58. This section is based upon interviews conducted at the Fulbright Commission, Nicosia, April 2001.
59. For example I was provided with a flow chart by the US embassy in Nicosia which illustrates how the "Economic Support Funds" are distributed from US Congress to USAID. From USAID it is distributed to UNDP, the US Department of State, AMIDEAST, and USGS. UNDP then funds UNOPS' Bicommunal development program. The Department of State funds Fulbright's US scholarship program and AMIDEAST Bicommunal support program. USGS funds a Water Database Development Program.
60. See Oliver P. Richmond, "Rethinking Conflict Resolution: The Linkage Problematic Between "Track I" and "Track II."
61. Holly Pearce, Director of Bicommunal Projects, Personal Interview, April 5, 2001.
62. Turkish Cypriot diplomatic source, Personal Interview, March 30, 2001, Lefkosha.

63. Such views emerged from a Greek Cypriot diplomatic source, Personal Interview, 18 December 2001, Nicosia.
64. Maria Hadjipavlou, Personal Interview, Nicosia, April 2, 2001.
65. Ahmed Gazioglu, Telephone Interview, Nicosia, April 3, 2001.
66. See "Conflict resolution critics playing a political game," *Cyprus Mail*, Jan. 29, 2002.
67. Cited in "Clerides—Denktash: A Divergence of Views," *Cypria.com*, April 1, 2001.

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